

THE STATUTES OF THE REPUBLIC OF SINGAPORE

MISCELLANEOUS OFFENCES (PUBLIC ORDER AND NUISANCE) ACT 1906

2020 REVISED EDITION

This revised edition incorporates all amendments up to and including 1 December 2021 and comes into operation on 31 December 2021.

Prepared and Published by

THE LAW REVISION COMMISSION
UNDER THE AUTHORITY OF
THE REVISED EDITION OF THE LAWS ACT 1983

Informal Consolidation – version in force from 17/8/2026

Miscellaneous Offences (Public Order and Nuisance) Act 1906

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[6 July 1906]

PART 1

PRELIMINARY

Short title

1. This Act is the Miscellaneous Offences (Public Order and Nuisance) Act 1906.

Interpretation

2. In this Act, unless the context otherwise requires —

"cattle" includes bulls, cows, bullocks and buffaloes;

"horse" includes mules and asses;

"in or near any public road" includes all places in the public road, and all places within 9 metres of it not being effectually separated from and hidden from the road by a wall or otherwise;

"public place" means any place or premises to which at the material time the public or any section of the public has access, on payment or otherwise, as of right or by virtue of express or implied permission;

"public road" includes every road, street, passage, footway or square over which the public has a right of way.

Verandah public roads

3. The open verandahs of houses abutting on the public roads are public roads for foot passengers subject to all rights of property of the owners of those houses.

Offences how punishable

4. All offences under this Act are to be tried by a Magistrate's Court or a District Court; and despite the provisions of any other written law, a Magistrate's Court or a District Court has the power to impose the maximum penalty prescribed for any such offence.

PART 2

OFFENCES AGAINST PUBLIC ORDER AND NUISANCE

5. [*Repealed by Act 15 of 2009*]

Burning material or discharging firearm in public road

6.—(1) Any person who sets fire to or burns any material to the annoyance, inconvenience or danger of the public, or negligently or wilfully discharges any firearm or airgun, or throws or discharges any stone or other missile, or sends up any fire balloon or rocket in or near any public road shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000.

(2) It is not an offence under subsection (1) for any person to discharge a firearm or airgun in or near a public road in the exercise of the person's duty under any written law relating to the destruction of dogs.

Duty of police officers as to dangerous animals

7.—(1) Every police officer must secure any animal reasonably suspected to be mad or dangerous, and any wild animal found at large in or near any public road under circumstances of danger to the public.

(2) If there is reasonable ground to believe that any such mad, dangerous or wild animal cannot be secured without risk of personal injury to the police officer attempting to secure the animal, the police officer may shoot or otherwise destroy the animal.

Dog running at persons, etc.

8. If it is proved to the satisfaction of a Magistrate's Court that any dog is in the habit of running at persons or at vehicles or bicycles passing along a public road, the owner of the dog shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000.

Ferocious dog at large

9. Any person who negligently suffers to be at large any ferocious dog without a muzzle shall be guilty of an offence and shall be liable

on conviction to a fine not exceeding $5,000, and if the dog has bitten, or attempted to bite any person, the dog may be killed by order of a Magistrate's Court.

Liability of dog owner

10.—(1) Any owner of a dog which causes injury to any person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000.

(2) In addition to any fine imposed under subsection (1), compensation not exceeding $2,000 is payable to the person injured in respect of any such injury.

(3) Such compensation is to be assessed by the Magistrate's Court and is recoverable from the owner of the dog in the manner provided by law for the recovery of fines before Magistrates' Courts.

(4) In any prosecution relating to any dog under subsection (1), it is not necessary to show a previous vicious propensity in the dog or the owner's knowledge of such previous propensity or that the injury was attributable to neglect on the part of the owner.

(5) The occupier of any house or premises where any dog was kept or permitted to live or remain at the time of causing any such injury mentioned in subsection (1) is deemed to be the owner of the dog and shall be liable as such unless the occupier can prove that —

(*a*) he or she was not the owner of the dog at the time the injury complained of was committed; and

(*b*) the dog was kept or permitted to live or remain in the house or premises without his or her sanction or knowledge.

(6) Where there are 2 or more occupiers in any house or premises let in separate apartments or lodgings or otherwise, the occupier of that particular part of the premises in which the dog was kept or permitted to live or remain at the time of the injury is deemed to be the owner of the dog.

(7) No compensation is payable to any person under this section in respect of injury sustained in any house or premises except upon proof that the person entered the house or premises in the ordinary

course of the person's duties or with the express or implied permission of the occupier.

(8) No criminal liability arises under this section in respect of any injury sustained by any person in any house or premises unless the person entered the house or premises in the ordinary course of the person's duties or with the express or implied permission of the occupier.

(9) The owner shall not be liable under this section for any injury sustained by any person where the injury was attributable to any wrongful act of that person.

Nuisances

11.—(1) Any person who commits any of the following offences shall be liable on conviction to a fine not exceeding $1,000:

(*a*) without authority in the case of public property, or without the consent of the owner or occupier in the case of private property, affixes or causes to be affixed any advertisement, bill or notice, or any paper against or upon any building, wall or fence, or writes upon, defaces or marks any such building, wall or fence with chalk or paint, or in any other way;

(*b*) bathes or washes himself or herself, or any other person, animal or thing on any public road, or in, upon or by the side of any public tank, reservoir, watercourse or stream;

(*c*) obstructs or causes trouble or inconvenience to a person bathing at any place set apart as a bathing place by wilful intrusion, or by washing any animal at or near that place, or in any other way;

(*d*) being the owner or person in charge of any animal does not, if the animal dies, dispose of its carcase in such a way as not to be a common nuisance;

(*e*) places any dead animal on or near any public road;

(*f*) spits in any coffee shop, market, eating house, school house, theatre or public building, or in any omnibus, railway carriage or other public conveyance, or on any

wharf or jetty, or in any public road, or on any five-foot way or sidewalk of any public road, or in any other place to which the public has or may have access;

(*g*) suffers to be at large any unmuzzled ferocious dog or other animal, or sets on or urges any dog or other animal to attack, worry or put in fear any person or animal.

(2) Any person who commits an offence under subsection (1)(*f*), after having been previously convicted for an offence under that subsection, shall be liable on conviction to a fine not exceeding $2,000.

Offences relating to animals

12.—(1) Any person who commits any of the following offences shall be liable on conviction to a fine not exceeding $1,000:

(*a*) being the owner or person in charge of any animal allows the animal to injure any tree or plant, or fence round any tree or plant, in or at the side of any public road, or to graze on the side of any public road;

(*b*) allows any horse, cattle, goat, sheep or pig to stray upon, or tethers or pickets any such animal upon, any public road or State land or land in the possession of any local authority or public institution or land in the possession of any private person, without the permission of the owner or lawful occupier thereof;

(*c*) leads or drives any horse, cattle, goat, sheep or pig in or near any public road without having them under proper control.

(2) All damage done by an animal mentioned in subsection (1)(*a*) is to be assessed by a Magistrate's Court and is recoverable in the manner provided by law for the recovery of fines before Magistrates' Courts from the owner of the animal, together with any amounts to be levied as fines.

Other offences relating to public road

13.—(1) Any person who commits any of the following offences shall be liable on conviction to a fine not exceeding $5,000:

(*a*) lays any stone, brick or other article on any public road so as to cause an obstruction thereto, or so as to make the use of the road less convenient;

(*b*) allows to remain on any public road any article which has fallen from any vehicle of which the person is in charge;

(*c*) deposits or causes or allows any article or thing to be deposited on any public road or otherwise causes or allows that article or thing to create obstruction or inconvenience to the passage of the public for a longer period than is absolutely necessary for loading or unloading the article or thing;

(*d*) causes or permits any cart, wheelbarrow, bicycle, tricycle or other vehicle to stand on any public road so as to create or to be likely to create obstruction or inconvenience to the passage of the public in that public road;

(*e*) flies any kite, or plays at any game, or does any act which obstructs or interferes with the traffic in any public road, or the use of the wires of any telephone;

(*f*) places any blind, shade, covering, awning or other projection over or along any public road if any part thereof is less than 2½ metres above the surface of that public road.

(2) If it is proved that any article or thing has been deposited on any public road from any building or land in contravention of subsection (1)(*c*), it is presumed, until the contrary is proved, that the occupier of the building or land has caused or allowed it to be so deposited.

Excessive noise

14.—(1) Any person who makes any noise by any instrument or other means in such a manner as to cause or be likely to cause annoyance or inconvenience to the occupier of any premises in the

vicinity or to any person lawfully using any public road or in any public place shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000.

(2) Any police officer, on any complaint that any person in any premises or in any public place is making such noise as to cause annoyance or inconvenience to the complainant, may enter upon the premises or proceed to the public place and, after warning the person reasonably suspected of making the noise, stop the making of such noise whether by the removal of any instrument or object or in some other appropriate manner.

Making of harassing or obscene telephone calls to emergency telephone numbers

14A.—(1) Any person who makes a telephone call to an emergency telephone number with intent to annoy, abuse, threaten or harass any person who answers the telephone call shall be guilty of an offence and, subject to subsection (3), shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding one year or to both.

(2) Any person who makes a telephone call to an emergency telephone number and, upon the call being answered, makes or solicits any comment, request, suggestion, proposal or other comment, request, suggestion, proposal or other communication or sound which is obscene, lewd, lascivious, filthy or indecent, shall be guilty of an offence and, subject to subsection (3), shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both.

(3) Any person who uses a public telephone to commit an offence —

(*a*) under subsection (1) shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 2 years or to both; and

(*b*) under subsection (2) shall be liable on conviction to a fine not exceeding $20,000 or to imprisonment for a term not exceeding 5 years or to both.

(4) For the purposes of this section —

(*a*) "emergency telephone number" means any telephone number which the Minister may, by order in the *Gazette*, declare to be an emergency telephone number; and

(*b*) a person who makes a telephone call to an emergency telephone number and, upon the telephone call being answered, refuses to speak or immediately hangs up is presumed until the contrary is proved to have intent to annoy any person answering the telephone call.

(5) In this section and section 14B, "public telephone" means a telephone which is available for use by any member of the public with or without payment.

Liability of subscriber

14B.—(1) Any person being the subscriber to a telephone service which has been used to commit an offence under section 14A shall, unless the person proves to the satisfaction of the court that the person had exercised due diligence to prevent the commission of the offence, be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000.

(2) Subsection (1) does not apply to the subscriber of a public telephone service.

Providing of information

14C.—(1) A police officer may, for the purpose of investigating into an offence under section 14A or 14B, by written notice require any person to provide, within such period as may be specified in the notice, any document or information as may be —

(*a*) required by the police officer for the purpose of the investigation; and

(*b*) within the knowledge, or in the custody or under the control, of such person.

(2) No action, suit or proceedings lies against any person who has provided any document or information to a police officer pursuant to subsection (1).

(3) Any person who, on being required by a notice under subsection (1) to provide any document or information, fails to comply with the notice shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

Communicating false message

14D.—(1) Any person who transmits or causes to be transmitted a message which the person knows to be false or fabricated shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both.

[15/2019]

(1A) However, a person is not guilty of an offence under subsection (1) if the person proves, on a balance of probabilities, that the transmission of the message has a legitimate purpose related to public order, public safety or national security, or the prevention, investigation or prosecution of offences.

Illustration

As part of a campaign to raise public awareness against phishing scams, a government agency sends an email to various members of the public which contains a false message that entices its recipient to click on a link which would purportedly give free shopping vouchers. The link leads to a pop-up message informing the recipient that the message was a simulated phishing attempt, and had it been genuine, the recipient could have activated malware to allow a fraudster to steal money from his or her online account. The sending of the false message has a legitimate purpose related to the prevention of offences.

[Act 16 of 2024 wef 17/06/2024]

(2) In subsection (1) —

"message" means any sign, signal, writing, image, sound, intelligence or information of any nature transmitted by telecommunications;

"telecommunications" means a transmission, emission or reception of signs, signals, writing, images, sounds or intelligence of any nature by wire, radio, optical or other electromagnetic systems whether or not such signs, signals, writing, images, sounds or intelligence have been subjected

to rearrangement, computation or other processes by any means in the course of their transmission, emission or reception.

[15/2019]

Publication of identity information and accompanying false statement of fact in relation to public servant

14E.—(1) Any person who, by any means, publishes any identity information of a public servant or a related person of a public servant, accompanied by a false statement of fact relating to the public servant that the person knows or has reason to believe is false —

(*a*) with intent to prevent or deter the public servant from discharging his or her duty; or

(*b*) in consequence of anything done or attempted to be done by the public servant in the lawful discharge of his or her duty,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both.

(2) In this section —

(*a*) a statement of fact is a statement which a reasonable person seeing, hearing or otherwise perceiving it would consider to be a representation of fact; and

(*b*) a statement is false if it is false or misleading, whether wholly or in part, and whether on its own or in the context in which it appears.

(3) In this section —

"identity information" has the meaning given by section 2(1) of the Protection from Harassment Act 2014;

"public servant" has the meaning given by section 21 of the Penal Code 1871, and includes any person who, by virtue of any other written law, is deemed to be a public servant for the purposes of the Penal Code 1871;

"publish", in relation to a communication or statement, means to make the communication or statement available in any form such that the communication or statement is or can be heard, seen or otherwise perceived by the public in Singapore or a member of the public in Singapore, and includes cause to be published;

"related person", in relation to a person, means another person about whose safety or wellbeing the firstmentioned person would reasonably be expected to be seriously concerned.

[Act 21 of 2025 wef 17/08/2026]

Relief for occupier of premises from nuisance

15.—(1) A Magistrate's Court may act under this section on a complaint made by the occupier of any premises on the ground that the occupier of the premises is aggrieved by noise amounting to a nuisance.

(2) If the Magistrate's Court is satisfied that the alleged nuisance exists, or that although abated it is likely to recur on the same premises, the Court is to make an order for either or both of the following purposes:

(*a*) requiring the defendant to abate the nuisance, within a time specified in the order and to execute any works necessary for that purpose;

(*b*) prohibiting a recurrence of the nuisance, and requiring the defendant, within a time specified in the order, to execute any works necessary to prevent the recurrence.

(3) Proceedings under this section are to be brought against the person responsible for the nuisance or, if that person cannot be found, against the owner or occupier of the premises from which the noise is emitted or would be emitted.

(4) A person who without reasonable excuse contravenes any requirement of an order under subsection (2) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000.

(5) In any proceedings for an offence under this section in respect of noise caused in the course of a trade or business, it is a defence to prove that the best practicable means have been used for preventing, or for counteracting the effect of, the noise.

(6) In this section —

"noise" includes vibration;

"person responsible", in relation to the emission of noise, means the person to whose act, default or sufferance the noise is attributable; and where more than one person is responsible for the noise, this section applies to each of those persons whether or not what any one of them is responsible for would by itself amount to a nuisance, or would result in a level of noise justifying any proceedings under this section;

"practicable" means reasonably practicable having regard among other things to local conditions and circumstances, to the current state of technical knowledge and to the financial implications.

Obstruction in canals, etc.

16.—(1) Any person who in any river or canal in which the public has a right of navigation, without the written permission of the Deputy Commissioner of Police, the Director of Marine or the Deputy Director of Marine —

(*a*) leaves any boat or vessel at any place for a longer time than is necessary for loading and unloading;

(*b*) refuses to move the person's boat or vessel away from that place when so directed by any police officer;

(*c*) leaves any raft or log or piece of timber or plank in any such river or canal more than one day after its arrival therein; or

(*d*) erects in any such river or canal any stage or scaffolding,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $25.

(2) Such boat, vessel, raft, timber or plank may be removed by the police.

(3) The expense of such removal is recoverable as a fine from the owner or person in charge of the same, and if not paid by the owner or person may be recovered by distress and sale of the property of such owner or person and of such boat, vessel, raft, timber or plank.

Penalty for depositing corpse or dying person

17. Any person who deposits or causes to be deposited any corpse or any dying person in any public place or in any private place without the consent of the owner shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

PART 3

OTHER OFFENCES

18. [*Repealed by Act 5 of 2015*]

Soliciting in public place

19. Every person who in any public road or public place persistently loiters or solicits for the purpose of prostitution or for any other immoral purpose shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000 and, in the case of a second or subsequent conviction, to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

Riotous, disorderly or indecent behaviour in, or in immediate vicinity of, certain places

20. Any person who is found guilty of any riotous, disorderly or indecent behaviour in any public road or in any public place or place of public amusement or resort, or in the immediate vicinity of, or in, any court, public office, police station or place of worship, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both and, in the case of a second or subsequent

conviction, to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 12 months or to both.

[5/2015]

Wilful trespass on property

21.—(1) Any person who without satisfactory excuse wilfully trespasses on any ground belonging to the Government or appropriated to public purposes, or in or on any dwelling house or premises or any land or ground attached thereto, or on any boat or vessel, not thereby in any of such cases causing any actual damage, or not causing in the opinion of the Magistrate's Court more than nominal damage, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000.

(2) Any officer or non-commissioned officer of the Singapore Armed Forces or of any visiting forces lawfully present in Singapore may, with or without warrant, arrest any person offending in his or her view against the provisions of this section, and that person may be brought before a Magistrate's Court to be dealt with according to law.

[Act 24 of 2022 wef 28/10/2022]

Loitering in place, vessel, etc., without satisfactory explanation

22.—(1) Any person who —

(*a*) is a reputed thief, is found on board any vessel or boat, or loitering in any street, road, yard or other place and does not give a satisfactory account of himself or herself; or

(*b*) is found in any dwelling house or other building without being able satisfactorily to account for his or her presence therein,

shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding 6 months.

[15/2019]

(2) Any offence under this section is deemed to be an arrestable offence within the meaning of the Criminal Procedure Code 2010.

[15/2019]

Carrying truncheons, etc., in public places

22A.—(1) Except as provided in this section or any other written law, a person must not, in any public place, carry or have in his or her possession or under his or her control (whether or not in the performance of his or her functions as a private investigator, security officer or security service provider licensed under the Private Security Industry Act 2007) any truncheon, handcuffs, or such other weapon or equipment as may from time to time be specified by the Minister by notification in the *Gazette*.

[38/2007; 2/2012]

(1A) A gun, an explosive or a weapon within the meaning of the Guns, Explosives and Weapons Control Act 2021 must not be specified under subsection (1).

[Act 3 of 2021 wef 01/07/2025]

(2) Any private investigator, security officer or security service provider licensed under the Private Security Industry Act 2007, or any other person, who contravenes subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding one month or to both.

[38/2007; 2/2012]

(3) Nothing in this section prohibits or prevents the carrying of any truncheon, handcuffs or specified weapon or equipment by a police officer, an auxiliary police officer or a forensic specialist acting in the course of his or her duty as such in accordance with the Police Force Act 2004, or a member of the Singapore Armed Forces or of any visiting force lawfully present in Singapore under any law relating to visiting forces.

[38/2007; 2/2012; 10/2015]

[Act 43 of 2024 wef 24/03/2025]

(4) A private investigator, security officer or security service provider who is licensed under the Private Security Industry Act 2007 may be authorised to carry or have in his or her possession in any public place any truncheon, handcuffs or specified weapon or equipment if, and only if —

(*a*) the licensing officer under that Act is satisfied that it is necessary for the performance of his or her functions as a

private investigator, security officer or security service provider, and it is appropriate for permission to be given for such carrying or possession;

(*b*) the private investigator's licence, the security officer's licence or the security service provider's licence (as the case may be) is endorsed (with or without conditions) by the licensing officer to permit such carrying or possession; and

(*c*) the truncheon, handcuffs, weapon or equipment is of the type approved by that licensing officer.

[38/2007; 2/2012]

(5) The Commissioner of Police may authorise, subject to such conditions of authorisation as he or she thinks fit to impose, any person, or every person belonging to a class of persons, to carry or have in the person's possession or under the person's control in any public place any truncheon, handcuffs or specified weapon or equipment, if —

(*a*) the Commissioner of Police is satisfied that such carrying, possession or control is necessary in the circumstances, and it is appropriate for permission to be given for such carrying, possession or control; and

(*b*) the truncheon, handcuffs, weapon or equipment is of the type approved by the Commissioner of Police.

[2/2012]

(6) The Commissioner of Police may at any time —

(*a*) revoke any authorisation under subsection (5); or

(*b*) add to, vary or revoke any condition of authorisation imposed under subsection (5).

[2/2012]

(7) In this section —

"public place" includes any premises or place to which the public has or is permitted to have access, whether on the invitation of the owners or occupiers thereof or on payment or otherwise;

"specified weapon or equipment" means any weapon or equipment specified by the Minister under subsection (1).

[2/2012]

Penalty for taking intoxicant, etc., into public hospital

23. Any person who takes or attempts to take without due permission into any public hospital any intoxicating liquor, drug or preparation shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000 or to imprisonment for a term not exceeding 2 months, and such liquor, drug or preparation and the vessels containing the same are to be forfeited.

Improper management of house of public resort

24. Any person who being the keeper of any house licensed under any written law as a public house or as a retail liquor shop or which is used as a place of public entertainment or public resort —

(*a*) knowingly permits any unlawful games or gaming therein;

(*b*) knowingly permits prostitutes or persons of notoriously bad character or drunken and disorderly persons to assemble or continue in or upon the person's premises;

(*c*) knowingly allows the deposit therein of goods having reasonable cause to believe them to be stolen; or

(*d*) does or permits any act in contravention of the person's licence,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 3 months, and to the forfeiture of the person's licence, if any.

PART 4

VAGRANCY

Interpretation of this Part

25. For the purposes of this Part, "place of public resort", "public place" and expressions of similar meaning are deemed to include

every estate, factory or place in which 10 or more workmen are employed.

Disorderly or indecent behaviour by prostitutes

26. Every common prostitute wandering in any public road or place of public resort and behaving in a disorderly or indecent manner is deemed to be an idle and disorderly person within the meaning of this Part and shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000 or to imprisonment for a term not exceeding one month.

Rogues and vagabonds

27.—(1) Every person —

(*a*) committing an offence under section 26, after having been previously convicted as an idle and disorderly person;

(*b*) pretending or professing to tell fortunes in any manner which causes or is likely to cause a public nuisance, or using any subtle craft, means or device, by palmistry or otherwise, to deceive and impose upon any person;

(*c*) wilfully exposing to view, in any street, road, highway or public place, any obscene print, picture or other indecent exhibition;

(*d*) wilfully, openly, lewdly and obscenely exposing his or her person in any street, road or public highway, or in the view thereof, or in any place of public resort, with intent to insult any female;

(*e*) going about as a gatherer or collector of alms, or endeavouring to procure charitable contributions of any nature or kind, under any false or fraudulent pretence;

(*f*) having in his or her possession without lawful excuse any instrument or material with intent to commit any offence;

(*g*) being found in or upon any dwelling house, or premises for the custody of property, or in any enclosed yard, garden or area, for any unlawful purpose; or

(*h*) arrested as an idle and disorderly person who violently resists arrest and being subsequently convicted of the offence for which he or she was arrested,

is deemed to be a rogue and vagabond within the meaning of this Part and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 3 months or to both.

(2) Every suspected person or reputed thief, frequenting or loitering in or about any river, canal or navigable stream, dock or basin, or any quay, wharf or warehouse near or adjoining thereto, or any street, highway or avenue leading thereto, or any place of public resort, or any avenue leading thereto, or any street, highway or place adjacent thereto, or in any highway or any place adjacent to a street or highway, with intent to commit an arrestable and non-bailable offence, is deemed to be a rogue and vagabond within the meaning of this Part and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 3 months or to both.

(3) In proving the intent mentioned in subsection (2), it is not necessary to show that the person suspected was guilty of any particular act or acts tending to show his or her purpose or intent, and the person may be convicted if, from the circumstances of the case, and from his or her known character as proved to the court, it appears that his or her intent was to commit an arrestable and non-bailable offence.

Appearing nude in public or private place

27A.—(1) Any person who appears nude —

(*a*) in a public place; or

(*b*) in a private place and is exposed to public view,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 3 months or to both.

(2) For the purpose of this section, the reference to a person appearing nude includes a person who is clad in such a manner as to offend against public decency or order.

(3) Where an offence under this section is committed in a private place, it is lawful for a police officer to enter the private place without the authority of the owner or occupier of the private place to effect the arrest of the offender.

(4) In effecting entry under subsection (3), it is lawful for a police officer to use such force as may be necessary to enter the private place.

Any person may arrest offender

28. It is lawful for any person whatsoever to arrest any person found offending against this Part and to deliver him or her to any police officer.

Search of conveyance or goods of person arrested

29. Any police officer or other person arresting any person charged with being an idle and disorderly person, or a rogue and vagabond, may take any vehicle or goods in the possession of that person as well as that person before a police officer to be searched in the presence of the police officer.

Search of premises for idle and disorderly person and rogue and vagabond

30. A Magistrate before whom information has been duly sworn that any person described to be an idle and disorderly person, or a rogue and vagabond, is or is reasonably suspected to be harboured or concealed in any hotel, boarding house, lodging house or eating house, may authorise any police officer to enter at any time into any such hotel, boarding house, lodging house or eating house and to arrest every such idle and disorderly person, rogue and vagabond found therein.

Magistrate may take recognisances for good behaviour in certain cases

31. It is lawful for any Magistrate before whom any person is convicted under this Part to call upon the person convicted to execute a bond with sureties for the person's good behaviour in lieu of being

punished but the Magistrate must not so call upon any person who has been convicted for the second time of being a rogue and vagabond.

PART 5

TOUTING

Touting for business

32. Any person in any public road, public place, place of public resort or vehicle on a public road who, in connection with any trade or business (whether or not carried on by that person), solicits any other person persistently or in any manner as to cause or be likely to cause annoyance to that other person shall be guilty of an offence and shall be liable on conviction to a fine of not less than $1,000 and not more than $5,000 or to imprisonment for a term not exceeding 6 months or to both and, in the case of a second or subsequent conviction, to a fine of not less than $2,000 and not more than $10,000 or to imprisonment for a term not exceeding one year or to both.

Touting in public offices

33.—(1) Any person who in any public office, or in the vicinity thereof, solicits to offer or loiters for the purpose of offering in connection with the public office his or her services to any one or more persons having business at that public office or any other public office (whether or not the services so offered relate to the business) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

(2) Subsection (1) does not apply to —

(*a*) any officer specifically appointed to advise the public on the business carried on in a public office; and

(*b*) any person who is licensed under any written law or is otherwise authorised to act as a petition writer.

(3) In this section, "public office" means any court and Government office or department.

Arrestable offence

34. Every offence under this Part is deemed to be an arrestable offence within the meaning of the Criminal Procedure Code 2010.

PART 6

FRAUDULENT POSSESSION OF PROPERTY

Fraudulent possession of property

35.—(1) Any person who has in his or her possession or conveys in any manner anything which may be reasonably suspected of being stolen or fraudulently obtained shall, if the person fails to account satisfactorily how he or she came by the same, be guilty of an offence and shall be liable on conviction to a fine not exceeding $3,000 or to imprisonment for a term not exceeding one year or to both.

(2) If any person charged with having or conveying anything stolen or fraudulently obtained declares that he or she received the same from some other person, or that he or she was employed as a carrier, agent or servant to convey the same for some other person, the court may cause every such other person, and also (if necessary) every former or pretended purchaser or other person through whose possession the same has passed (if such other person is alleged to have had possession of the same within the jurisdiction of that court) to be brought before it and examined, and is to examine witnesses upon oath touching the same.

(3) If it appears to the court that any person so brought before it had possession of such thing and had reasonable cause to believe the same to have been stolen or fraudulently obtained, that person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding one year or to both.

(4) In this section, "possession" includes possession in a house, building, ship, vessel, boat or other place as well as possession in a public road or place.

(5) Any person who —

(*a*) having been convicted of an offence punishable under this section or under Chapter 12 or 17 of the Penal Code 1871; or

(*b*) having been convicted in Malaysia or in Brunei Darussalam of an offence of a nature similar to any of those offences,

is subsequently convicted of an offence punishable under this section shall be liable to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 2 years or to both.

(6) If information is given on oath to a Magistrate's Court that there is cause to suspect that any property which may be reasonably suspected of being stolen or fraudulently obtained is within any house, building, ship, vessel, boat or other place, the Court may, by warrant directed to any police officer, cause the house, building, ship, vessel, boat or other place to be entered and searched at any hour of the day or night.

(7) The information mentioned in subsection (6) must describe the property which it is reasonably suspected has been stolen or fraudulently obtained, and must also describe the house, building, ship, vessel, boat or other place in which the property is suspected to be.

(8) If upon the making of the search any property, such as that described in the information, is found in the house, building, ship, vessel, boat or other place, the police officer making the search or some other police officer must convey the property before a Magistrate's Court or guard the property on the spot or otherwise dispose thereof in some place of safety.

(9) The police officer making the search or some other police officer must also take into custody and bring before a Magistrate's Court every person in such house, building, ship, vessel, boat or other place in whose possession or under whose control such property is found.

(10) Sections 31 and 37 of the Criminal Procedure Code 2010 apply to searches made under subsections (6), (7), (8) and (9).

[15/2010]

Secondhand dealers and money changers to report property stolen or fraudulently obtained

36.—(1) When any property has been stolen or fraudulently obtained, and a written description of the property has been given by any police officer to any dealer in secondhand goods or money changer, and property answering the description of the property is in the possession of such dealer or money changer or afterwards comes into the dealer's or money changer's possession or is offered to the dealer or money changer for sale or exchange, the dealer or money changer must without undue delay give information of the property to any police officer or at a police station, and must at the same time state the name and address given by the person from whom the dealer or money changer received that property or by whom it was offered to the dealer or money changer for sale or exchange.

(2) Any person who fails to give such information as the person is required to give by this section shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $1,000.

(3) When, in the opinion of the court, the property is of such a nature as to be difficult to identify no fine is to be imposed under this section unless the court is of the opinion that the property has been wilfully concealed by the accused.

Melting or defacing metals, etc., within 5 days of receipt

37.—(1) A relevant person who —

(*a*) melts, alters, defaces, puts away, disposes of or sells any goods, metals or articles; or

(*b*) causes any goods, metals or articles to be melted, altered, defaced, put away, disposed of or sold,

shall be guilty of an offence if —

(*c*) the act mentioned in paragraph (*a*) or (*b*) was done —

(i) within 5 days of receipt of the goods, metals or articles from any person other than another relevant person; or

(ii) after receiving information from a police officer that the goods, metals or articles had been stolen or fraudulently obtained;

(*d*) the act mentioned in paragraph (*a*) or (*b*) was done without the previous permission of the Director, Criminal Investigation Department; and

(*e*) the goods, metals or articles were in fact stolen or fraudulently obtained.

(2) A relevant person who is guilty of an offence under subsection (1) shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 6 months or to both.

(3) In this section —

"articles" means platinum, gold or silver articles;

"metals" means platinum, gold or silver;

"relevant person" means —

(*a*) any pawnbroker or any dealer in secondhand goods;

(*b*) any worker in platinum, gold or silver; or

(*c*) any dealer in platinum, gold or silver articles.

[Act 21 of 2025 wef 17/08/2026]

38. [*Deleted by Act 21 of 2025 wef 17/08/2026*]

Employees not affected

39. Nothing in section 37 applies to any person employed by any worker in platinum, gold or silver, or by any dealer in platinum, gold or silver articles, for the purposes of the worker's or dealer's business.

[Act 21 of 2025 wef 17/08/2026]

PART 6A

OFFENCES RELATING TO MISUSE OF SIM CARDS

[Act 16 of 2024 wef 01/01/2025]

Interpretation of this Part

39A.—(1) In this Part —

"compromised SIM card" means a SIM card that has been used either —

(*a*) to commit, or to facilitate the commission of, a criminal offence; or

(*b*) to cause, or to facilitate the causing of, wrongful gain or wrongful loss to any person;

"personal information" means any information, whether true or not, about a person of a type that is commonly used alone or in combination with other information to identify or purport to identify a person, including (but not limited to) biometric data, name, address, date of birth, unique identification number, a written, electronic or digital signature, user authentication code, credit card or debit card number, and password;

"retailer" means a person who, in the course of trade or business, provides the service of registering SIM cards for consumers;

"scam offence" means any offence specified in the Schedule;

[Act 21 of 2025 wef 30/12/2025]

"SIM card" means a prepaid or postpaid subscriber identification module (SIM) card (whether in physical or digital form) issued with a Singapore telephone number, but does not include a SIM card that is expired or that has been terminated;

"telecommunication licensee" has the meaning given by section 2 of the Telecommunications Act 1999;

"unique identification number" means —

(*a*) in relation to an individual — an identity card number, passport number or the number of any other similar document of identity issued by a government authority as evidence of the individual's nationality or place of residence, and includes a foreign identification number; and

(*b*) in relation to an entity —

(i) if incorporated or registered in Singapore, its Unique Entity Number (UEN); or

(ii) if not incorporated or registered in Singapore, its foreign incorporation or registration number;

"unregistered SIM card" means a SIM card that has not been registered with a telecommunication licensee using a person's personal information.

(2) In this Part, a reference to a person doing an act for any gain is a reference to the person doing the act for any gain —

(*a*) whether or not the gain is a wrongful gain;

(*b*) whether or not the gain is realised; and

(*c*) whether the gain is to that person or to another person.

(3) For the purposes of this Part —

(*a*) a reference to a person (*A*) buying, renting, borrowing or receiving a SIM card from another person (*B*) includes a reference to *A* buying, renting, borrowing or receiving from *B* —

(i) a mobile telephone or any other device containing the SIM card; or

(ii) a means (such as an application, a code or a link) through which the SIM card in digital form can be downloaded; and

(*b*) a reference to *A* providing, selling, renting, lending or supplying a SIM card to *B* includes a reference to *A* providing, selling, renting, lending or supplying to *B* —

(i) a mobile telephone or any other device containing the SIM card; or

(ii) a means (such as an application, a code or a link) through which the SIM card in digital form can be downloaded.

Illustration

A registers for an eSIM using *A*'s personal information, and obtains a QR code which *A* can use to download the eSIM onto *A*'s phone. *A* provides the QR code to *B* for *B* to download the eSIM onto *B*'s phone. *A* has provided the eSIM to *B*.

[Act 16 of 2024 wef 01/01/2025]

Unlawful provision of SIM card registered using person's personal information

39B.—(1) A person shall be guilty of an offence if the person —

(*a*) provides, or offers to provide, a SIM card registered using the person's personal information to another person; and

(*b*) does so knowing, or having reasonable grounds to believe, that the provision of the SIM card is for any person —

(i) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(ii) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(2) In proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have reasonable grounds to believe that the purpose of the provision of the SIM card is for a person to commit, or to facilitate the commission by a person of, an offence under any written law, if —

(*a*) *A* does the act for any gain; or

(*b*) at the time *A* does the act, *A* fails to take reasonable steps to ascertain —

(i) the identity and physical location of the person to whom the SIM card is provided; or

(ii) the purpose for which the person obtains the SIM card from *A*.

(3) For the purpose of proving a person's state of mind under subsection (1)(*b*), it is not necessary for the prosecution to prove that the SIM card was used to commit, or to facilitate the commission of, a specific offence.

(4) Subject to subsection (5), a person who is guilty of an offence under subsection (1) shall be liable on conviction —

(*a*) in the case of an individual, to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; or

(*b*) in any other case, to a fine not exceeding $20,000.

[Act 21 of 2025 wef 30/12/2025]

(5) Where an individual is convicted of an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), the individual shall, in addition to the punishment under subsection (4)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual knew that the provision or offer of the SIM card was for any person to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that the SIM card was used to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that the SIM card would

not be used to commit, or to facilitate the commission of, a scam offence.

[Act 21 of 2025 wef 30/12/2025]

(6) For the purposes of subsection (5)(*a*), it is not necessary for the prosecution to prove that the commission, or facilitation of the commission, of a scam offence was carried out.

[Act 21 of 2025 wef 30/12/2025]

(7) For the purposes of subsection (5)(*b*)(i), it is not necessary for the prosecution to prove that any person was convicted of the scam offence.

[Act 16 of 2024 wef 01/01/2025]

[Act 21 of 2025 wef 30/12/2025]

Unlawful provision, etc., of person's personal information for purpose of registering SIM card

39C.—(1) A person shall be guilty of an offence if —

(*a*) the person —

(i) provides, or offers to provide, the person's personal information to be used by another person; or

(ii) consents to, or offers to consent to, the person's personal information being used by another person; and

(*b*) the person does so knowing, or having reasonable grounds to believe —

(i) that the person's personal information will be used to register a SIM card; and

(ii) that the SIM card will be used —

(A) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(B) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(2) In proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(ii)(A), a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have reasonable grounds to believe that the SIM card will be used to commit, or to facilitate the commission by a person of, an offence under any written law, if —

(*a*) *A* does the act for any gain; or

(*b*) at the time *A* does the act, *A* fails to take reasonable steps to ascertain —

(i) the identity and physical location of the person who uses *A*'s personal information to register the SIM card; or

(ii) the purpose for which the person uses *A*'s personal information to register the SIM card.

(3) For the purpose of proving a person's state of mind under subsection (1)(*b*), it is not necessary for the prosecution to prove that the SIM card was used to commit, or to facilitate the commission of, a specific offence.

(4) Subject to subsection (5), a person who is guilty of an offence under subsection (1) shall be liable on conviction —

(*a*) in the case of an individual, to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; or

(*b*) in any other case, to a fine not exceeding $20,000.

[Act 21 of 2025 wef 30/12/2025]

(5) Where an individual is convicted of an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(ii)(A), the individual shall, in addition to the punishment under subsection (4)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual knew that the personal information will be used to register a SIM card that will be used to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that a SIM card registered using the personal information was used to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that, the SIM card would not be used to commit, or to facilitate the commission of, a scam offence.

[Act 21 of 2025 wef 30/12/2025]

(6) For the purposes of subsection (5)(*a*), it is not necessary for the prosecution to prove that the commission, or facilitation of the commission, of a scam offence was carried out.

[Act 21 of 2025 wef 30/12/2025]

(7) For the purposes of subsection (5)(*b*)(i), it is not necessary for the prosecution to prove that any person was convicted of the scam offence.

[Act 16 of 2024 wef 01/01/2025]

[Act 21 of 2025 wef 30/12/2025]

Transacting of SIM card registered using another person's personal information for criminal activity

39D.—(1) A person shall be guilty of an offence if —

(*a*) the person buys, rents, borrows or otherwise receives, or offers to buy, rent, borrow or otherwise receive —

(i) a SIM card registered using another person's personal information; or

(ii) an unregistered SIM card; and

(*b*) the person does so intending to use the SIM card, or to supply the SIM card to any other person —

(i) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(ii) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(2) A person shall be guilty of an offence if —

(*a*) the person sells, rents, lends or otherwise supplies, or offers to sell, rent, lend or otherwise supply, to another person —

(i) a SIM card registered using any other person's personal information; or

(ii) an unregistered SIM card; and

(*b*) the person does so knowing, or having reasonable grounds to believe, that the SIM card will be used —

(i) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(ii) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(3) In proceedings for an offence under subsection (1) or (2) involving a SIM card registered using another person's personal information, it is a defence for the accused to prove that the accused did not know, and had no reason to believe, that the SIM card was registered using another person's personal information.

(4) In proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have the intent to use or supply (as the case may be) the SIM card to commit, or to facilitate the commission by a person of, an offence under any written law, if —

(*a*) where the SIM card is a SIM card registered using another person's personal information — *A* does the act for any gain; or

(*b*) it is proved that the SIM card is a compromised SIM card at the time *A* does the act.

(5) In proceedings for an offence under subsection (2) involving the fault element mentioned in subsection (2)(*b*)(i), a person (*A*) who does an act mentioned in subsection (2)(*a*) is presumed, until the contrary is proved, to have reasonable grounds to believe that the SIM

card will be used to commit, or to facilitate the commission by a person of, an offence under any written law, if —

(*a*) where the SIM card is a SIM card registered using another person's personal information — *A* does the act for any gain;

(*b*) it is proved that the SIM card is a compromised SIM card at the time *A* does the act; or

(*c*) where the SIM card is registered using another person's personal information — at the time *A* does the act, *A* fails to take reasonable steps to ascertain —

(i) the identity and physical location of the person to whom the SIM card is supplied; or

(ii) the purpose for which the person receives the SIM card from *A*.

(6) In addition to subsection (4), in proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i) where the charge is amalgamated or involves more than one SIM card, a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have the intent to use or supply (as the case may be) the SIM card to commit, or to facilitate the commission by a person of, an offence under any written law, if the act concerns more than a total of 10 SIM cards registered using another person's personal information or unregistered SIM cards, or a combination of both.

(7) In addition to subsection (5), in proceedings for an offence under subsection (2) involving the fault element mentioned in subsection (2)(*b*)(i) where the charge is amalgamated or involves more than one SIM card, a person (*A*) who does an act mentioned in subsection (2)(*a*) is presumed, until the contrary is proved, to have reasonable grounds to believe that the SIM card will be used to commit, or to facilitate the commission by a person of, an offence under any written law, if the act concerns more than a total of 10 SIM cards registered using another person's personal information or unregistered SIM cards, or a combination of both.

(8) For the purpose of proving whether a SIM card was used to commit, or to facilitate the commission of, an offence, it is not necessary for the prosecution to prove that a specific offence occurred.

(9) Subject to subsections (10) and (11), a person who is guilty of an offence under subsection (1) or (2) shall be liable on conviction —

(*a*) in the case of an individual —

(i) to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $20,000 or to imprisonment for a term not exceeding 5 years or to both; or

(*b*) in any other case —

(i) to a fine not exceeding $20,000; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $40,000.

[Act 21 of 2025 wef 30/12/2025]

(10) Where an individual is convicted of an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), the individual shall, in addition to the punishment under subsection (9)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual intended to use the SIM card or to supply the SIM card to any other person, to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that the SIM card was used, or was supplied to another person, to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that, the SIM card would

not be used to commit, or to facilitate the commission of, a scam offence.

[Act 21 of 2025 wef 30/12/2025]

(11) Where an individual is convicted of an offence under subsection (2) involving the fault element mentioned in subsection (2)(*b*)(i), the individual shall, in addition to the punishment under subsection (9)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual knew that the SIM card will be used to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that the SIM card was used to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that the SIM card would not be used to commit, or to facilitate the commission of, a scam offence.

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(12) For the purposes of subsections (10)(*a*) and (11)(*a*), it is not necessary for the prosecution to prove that the commission, or facilitation of the commission, of a scam offence was carried out.

[Act 21 of 2025 wef 30/12/2025]

(13) For the purposes of subsections (10)(*b*)(i) and (11)(*b*)(i), it is not necessary for the prosecution to prove that any person was convicted of the scam offence.

[Act 16 of 2024 wef 01/01/2025]

[Act 21 of 2025 wef 30/12/2025]

Transacting of SIM card registered using another person's personal information for consideration

39E.—(1) A person shall be guilty of an offence if the person, in exchange for any consideration —

(*a*) buys or rents, or offers to buy or rent, a SIM card registered using another person's personal information; or

(*b*) sells or rents, or offers to sell or rent, a SIM card registered using another person's personal information to any other person.

(2) However, a person is not guilty of an offence under subsection (1) if the person proves, on a balance of probabilities, that —

(*a*) the person did not know, and had no reason to believe, that the SIM card was registered using another person's personal information;

(*b*) in the case of an offence under subsection (1)(*a*), the person bought or rented the SIM card for a lawful purpose; or

(*c*) in the case of an offence under subsection (1)(*b*), the person did not know, and had no reason to believe, that the SIM card would be used to commit, or to facilitate the commission of, any offence.

(3) A person who is guilty of an offence under subsection (1) shall be liable on conviction —

(*a*) in the case of an individual —

(i) to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $20,000 or to imprisonment for a term not exceeding 5 years or to both; or

(*b*) in any other case —

(i) to a fine not exceeding $20,000; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $40,000.

[Act 16 of 2024 wef 01/01/2025]

Possession of SIM card registered using another person's personal information for criminal activity

39F.—(1) A person shall be guilty of an offence if —

(*a*) the person possesses —

(i) a SIM card registered using another person's personal information; or

(ii) an unregistered SIM card; and

(*b*) the person intends to use the SIM card, or to supply the SIM card to any other person —

(i) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(ii) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(2) In proceedings for an offence under subsection (1) involving a SIM card registered using another person's personal information, it is a defence for the accused to prove that the accused did not know, and had no reason to believe, that the SIM card was registered using another person's personal information.

(3) In proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have the intent to use or supply (as the case may be) a SIM card for the purpose of committing, or facilitating the commission by a person of, an offence under any written law, if it is proved that the SIM card in *A*'s possession is a compromised SIM card.

(4) In addition to subsection (3), in proceedings for an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i) where the charge is amalgamated or involves more than one SIM card, a person (*A*) who does an act mentioned in subsection (1)(*a*) is presumed, until the contrary is proved, to have the intent to use or supply (as the case may be) a SIM card for the purpose of committing, or facilitating the commission by a person of, an offence under any written law, if *A* has in *A*'s possession more than a

total of 10 SIM cards registered using another person's personal information or unregistered SIM cards, or a combination of both.

(5) For the purpose of proving whether a SIM card was used to commit, or to facilitate the commission of, an offence, it is not necessary for the prosecution to prove that a specific offence occurred.

(6) Subject to subsection (7), a person who is guilty of an offence under subsection (1) shall be liable on conviction —

(*a*) in the case of an individual —

(i) to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $20,000 or to imprisonment for a term not exceeding 5 years or to both; or

(*b*) in any other case —

(i) to a fine not exceeding $20,000; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $40,000.

[Act 21 of 2025 wef 30/12/2025]

(7) Where an individual is convicted of an offence under subsection (1) involving the fault element mentioned in subsection (1)(*b*)(i), the individual shall, in addition to the punishment under subsection (6)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual intended to use the SIM card, or to supply the SIM card to any other person, to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that the SIM card was used, or was supplied to another person, to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that the SIM card would not be used to commit, or to facilitate the commission of, a scam offence.

[Act 21 of 2025 wef 30/12/2025]

(8) For the purposes of subsection (7)(*a*), it is not necessary for the prosecution to prove that the commission, or facilitation of the commission, of a scam offence was carried out.

[Act 21 of 2025 wef 30/12/2025]

(9) For the purposes of subsection (7)(*b*), it is not necessary for the prosecution to prove that any person was convicted of the scam offence.

[Act 16 of 2024 wef 01/01/2025]

[Act 21 of 2025 wef 30/12/2025]

Facilitation of fraudulent registration of SIM card that facilitates criminal activity

39G.—(1) A retailer or telecommunication licensee shall be guilty of an offence if —

(*a*) the retailer or telecommunication licensee registers a SIM card using any person's personal information;

(*b*) the retailer or telecommunication licensee does so knowing, or having reasonable grounds to believe —

(i) that there was no authorisation given by the person whose personal information is being used to register the SIM card; or

(ii) that the personal information given by the person seeking to register the SIM card is false or misleading; and

(*c*) either of the following applies:

(i) the retailer or telecommunication licensee does the act mentioned in paragraph (*a*) knowing, or having reasonable grounds to believe, that the SIM card will be used —

(A) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(B) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person;

(ii) the SIM card is used by any person —

(A) to commit, or to facilitate the commission by any person of, any offence under any written law; or

(B) to cause, or to facilitate the causing by any person of, wrongful gain or wrongful loss to any person.

(2) Subject to subsection (3), a person who is guilty of an offence under subsection (1) shall be liable on conviction —

(*a*) in the case of an individual —

(i) to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $20,000 or to imprisonment for a term not exceeding 5 years or to both; or

(*b*) in any other case —

(i) to a fine not exceeding $20,000; and

(ii) in the case of a second or subsequent conviction, to a fine not exceeding $40,000.

[Act 21 of 2025 wef 30/12/2025]

(3) Where an individual is convicted of an offence under subsection (1) involving the fault element mentioned in subsection (1)(*c*)(i)(A), the individual shall, in addition to the punishment under subsection (2)(*a*), be liable to caning of not more than 12 strokes —

(*a*) if the individual knew that the SIM card will be used to commit, or to facilitate the commission by any person of, any scam offence; or

(*b*) if —

(i) it is proved, to the satisfaction of the court, that the SIM card was used to commit, or to facilitate the commission of, a scam offence; and

(ii) the individual is not able to prove, to the satisfaction of the court, that he or she had, at any time, taken reasonable steps to ensure that the SIM card would not be used to commit, or to facilitate the commission of, a scam offence.

[Act 21 of 2025 wef 30/12/2025]

(4) For the purposes of subsection (3)(*a*), it is not necessary for the prosecution to prove that the commission, or facilitation of the commission, of a scam offence was carried out.

[Act 21 of 2025 wef 30/12/2025]

(5) For the purposes of subsection (3)(*b*)(i), it is not necessary for the prosecution to prove that any person was convicted of the scam offence.

[Act 21 of 2025 wef 30/12/2025]

(6) For the purposes of this section, a reference to a retailer or telecommunication licensee includes a reference to an employee of the retailer or telecommunication licensee (as the case may be) acting in the course of the employee's employment.

[Act 16 of 2024 wef 01/01/2025]

[Act 21 of 2025 wef 30/12/2025]

Offences under this Part committed outside Singapore

39H. An offence under section 39B(1), 39C(1), 39D(1) or (2), 39F(1) or 39G(1) committed wholly or partly outside Singapore may be dealt with as if the offence had been committed wholly within Singapore, if —

(*a*) the accused was in Singapore at the time the offence was committed; or

(*b*) the offence causes, or creates a significant risk of, direct and reasonably foreseeable harm in Singapore.

[Act 16 of 2024 wef 01/01/2025]

Arrestable offence

39I. Every offence under this Part is deemed to be an arrestable offence within the meaning of the Criminal Procedure Code 2010.

[Act 16 of 2024 wef 01/01/2025]

PART 7

MISCELLANEOUS

Power of arrest

40.—(1) Subject to the provisions of this Act, any police officer may arrest without warrant any person offending in the police officer's view against any of the provisions of this Act, and take the person before a Magistrate's Court to be dealt with according to law.

(2) Any animal, conveyance or article concerning by or for which an offence has been committed may be seized and taken to a pound or police station unless given up sooner by order of a Magistrate's Court, until the charge is decided in due course of law.

Offences by corporations

40A.—(1) Where, in a proceeding for an offence under this Act, it is necessary to prove the state of mind of a corporation in relation to a particular conduct, evidence that —

(*a*) an officer, employee or agent of the corporation engaged in that conduct within the scope of his or her actual or apparent authority; and

(*b*) the officer, employee or agent had that state of mind,

is evidence that the corporation had that state of mind.

(2) Where a corporation commits an offence under this Act, a person —

(*a*) who is —

(i) an officer of the corporation; or

(ii) an individual involved in the management of the corporation and in a position to influence the conduct of the corporation in relation to the commission of the offence; and

(*b*) who —

(i) consented or connived, or conspired with others, to effect the commission of the offence;

(ii) is in any other way, whether by act or omission, knowingly concerned in, or is party to, the commission of the offence by the corporation; or

(iii) knew or ought reasonably to have known that the offence by the corporation (or an offence of the same type) would be or is being committed, and failed to take all reasonable steps to prevent or stop the commission of that offence,

shall be guilty of the same offence as is the corporation, and shall be liable on conviction to be punished accordingly.

(3) A person mentioned in subsection (2) may rely on a defence that would be available to the corporation if it were charged with the offence with which the person is charged and, in doing so, the person bears the same burden of proof that the corporation would bear.

(4) To avoid doubt, this section does not affect the application of —

(*a*) Chapters 5 and 5A of the Penal Code 1871;

(*b*) the Evidence Act 1893 or any other law or practice regarding the admissibility of evidence; or

(*c*) section 39.

(5) To avoid doubt, subsection (2) also does not affect the liability of the corporation for an offence under this Act, and applies whether or not the corporation is convicted of the offence.

(6) In this section —

"corporation" includes a limited liability partnership;

"officer", in relation to a corporation, means any director, partner, chief executive, manager, secretary or other similar officer of the corporation, and includes —

(*a*) any person purporting to act in any such capacity; and

(*b*) for a corporation whose affairs are managed by its members, any of those members as if the member were a director of the corporation;

"state of mind" of a person includes —

(*a*) the knowledge, intention, opinion, belief or purpose of the person; and

(*b*) the person's reasons for the intention, opinion, belief or purpose.

[Act 16 of 2024 wef 17/06/2024]

Offences by unincorporated associations or partnerships

40B.—(1) Where, in a proceeding for an offence under this Act, it is necessary to prove the state of mind of an unincorporated association or a partnership in relation to a particular conduct, evidence that —

(*a*) an employee or agent of the unincorporated association or partnership engaged in that conduct within the scope of his or her actual or apparent authority; and

(*b*) the employee or agent had that state of mind,

is evidence that the unincorporated association or partnership (as the case may be) had that state of mind.

(2) Where an unincorporated association or a partnership commits an offence under this Act, a person —

(*a*) who is —

(i) an officer of the unincorporated association or a member of its governing body;

(ii) a partner in the partnership; or

(iii) an individual involved in the management of the unincorporated association or partnership and in a

position to influence the conduct of the unincorporated association or partnership in relation to the commission of the offence; and

(*b*) who —

(i) consented or connived, or conspired with others, to effect the commission of the offence;

(ii) is in any other way, whether by act or omission, knowingly concerned in, or is party to, the commission of the offence by the unincorporated association or partnership; or

(iii) knew or ought reasonably to have known that the offence by the unincorporated association or partnership (or an offence of the same type) would be or is being committed, and failed to take all reasonable steps to prevent or stop the commission of that offence,

shall be guilty of the same offence as is the unincorporated association or partnership (as the case may be), and shall be liable on conviction to be punished accordingly.

(3) A person mentioned in subsection (2) may rely on a defence that would be available to the unincorporated association or partnership if it were charged with the offence with which the person is charged and, in doing so, the person bears the same burden of proof that the unincorporated association or partnership would bear.

(4) To avoid doubt, this section does not affect the application of —

(*a*) Chapters 5 and 5A of the Penal Code 1871;

(*b*) the Evidence Act 1893 or any other law or practice regarding the admissibility of evidence; or

(*c*) section 39.

(5) To avoid doubt, subsection (2) does not affect the liability of an unincorporated association or a partnership for an offence under this Act, and applies whether or not the unincorporated association or partnership is convicted of the offence.

(6) In this section —

"officer", in relation to an unincorporated association (other than a partnership), means the president, the secretary, or any member of the committee of the unincorporated association, and includes —

(*a*) any person holding a position analogous to that of president, secretary or member of a committee of the unincorporated association; and

(*b*) any person purporting to act in any such capacity;

"partner" includes a person purporting to act as a partner;

"state of mind" of a person includes —

(*a*) the knowledge, intention, opinion, belief or purpose of the person; and

(*b*) the person's reasons for the intention, opinion, belief or purpose.

[Act 16 of 2024 wef 17/06/2024]

Regulations

41. The Minister may make regulations for anything that is required, permitted, expedient or necessary for carrying out the purposes and provisions of this Act, including prescribing any offences under this Act as offences that may be compounded if not so prescribed by section 241 of the Criminal Procedure Code 2010.

[10/2015]

Amendment of Schedule

42. The Minister may, by order in the *Gazette*, amend the Schedule.

[Act 21 of 2025 wef 30/12/2025]

THE SCHEDULE

Sections 39A(1) and 42

SCAM OFFENCES

1. An offence under section 420(2) of the Penal Code 1871.

THE SCHEDULE — *continued*

2. An abetment of, or a conspiracy or an attempt to commit, an offence mentioned in item 1.

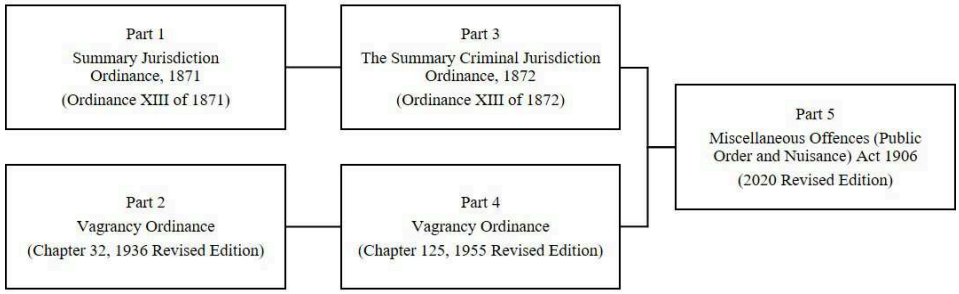
[Act 21 of 2025 wef 30/12/2025]

LEGISLATIVE HISTORY

MISCELLANEOUS OFFENCES (PUBLIC ORDER AND NUISANCE) ACT 1906

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

PICTORIAL OVERVIEW OF PREDECESSOR ACTS



LEGISLATIVE HISTORY DETAILS

PART 1
SUMMARY JURISDICTION ORDINANCE, 1871 (ORDINANCE XIII OF 1871)

1. Ordinance XIII of 1871 — Summary Jurisdiction Ordinance, 1871

Bill	:	Information not available
First Reading	:	19 July 1871
Second Reading	:	3 November 1871
Notice of Amendments	:	17 November 1871
Third Reading	:	17 November 1871
Commencement	:	16 September 1872

Note: This Ordinance repealed part of Indian Acts 13 of 1856, 48 of 1860 and 3 of 1863.

PART 2
VAGRANCY ORDINANCE
(CHAPTER 32, 1936 REVISED EDITION)

2. Ordinance VI of 1906 — The Vagrancy Ordinance 1906

Bill	:	G.N. No. 1542/1905
First Reading	:	22 December 1905
Second Reading	:	19 January 1906
Notice of Amendments	:	16 February 1906
Third Reading	:	2 March 1906
Commencement	:	2 March 1906

3. 1920 Revised Edition — Ordinance No. 94 (Vagrancy)

Operation	:	28 November 1921

4. Ordinance 26 of 1921 — Statute Laws (Revised Edition) Operation Ordinance, 1921

(Amendments made by section 3(*a*) read with Schedule *C* to the above Ordinance)

Bill	:	G.N. No. 1854/1921
First and Second Readings	:	22 November 1921
Notice of Amendments	:	22 November 1921
Third Reading	:	22 November 1921
Commencement	:	28 November 1921 (section 3(*a*) read with Schedule *C*)

5. Ordinance 12 of 1924 — Vagrancy Amendment Ordinance, 1924

Bill	:	G.N. No. 973/1924
First Reading	:	30 June 1924
Second Reading	:	15 September 1924
Third Reading	:	6 October 1924
Commencement	:	21 October 1924

6. 1926 Revised Edition — Ordinance No. 94 (Vagrancy)

Operation	:	1 August 1926

7. Ordinance 10 of 1932 — Vagrancy (Amendment) Ordinance, 1932

Bill	:	G.N. No. 550/1932

First Reading	:	4 April 1932
Second Reading	:	30 May 1932
Notice of Amendments	:	30 May 1932
Third Reading	:	8 August 1932
Commencement	:	19 August 1932

8. Ordinance 8 of 1934 — The Vagrancy (Amendment) Ordinance, 1934

Bill	:	G.N. No. 45/1934
First Reading	:	12 February 1934
Second and Third Readings	:	16 April 1934
Commencement	:	8 May 1934

9. 1936 Revised Edition — Vagrancy Ordinance (Chapter 32)

Operation	:	1 September 1936

PART 3
THE SUMMARY CRIMINAL JURISDICTION ORDINANCE, 1872
(ORDINANCE XIII OF 1872)

10. Ordinance XIII of 1872 — The Summary Criminal Jurisdiction Ordinance, 1872

Bill	:	Information not available
First Reading	:	4 June 1872
Second Reading	:	3 October 1872
Notice of Amendments	:	8 November 1872
Third Reading	:	8 November 1872
Commencement	:	8 November 1872 (except sections 19, 20 and 21) 1 March 1873 (sections 19, 20 and 21)

PART 4
VAGRANCY ORDINANCE
(CHAPTER 125, 1955 REVISED EDITION)

11. Ordinance 37 of 1939 — Vagrancy Ordinance, 1939

Bill	:	G.N. No. 2460/1939

First Reading	:	28 August 1939
Second Reading	:	16 October 1939
Notice of Amendments	:	16 October 1939
Third Reading	:	16 October 1939
Commencement	:	15 December 1939

12. Ordinance 32 of 1950 — Vagrancy (Amendment) Ordinance, 1950

Bill	:	G.N. No. S 116/1950
First Reading	:	25 April 1950
Second Reading	:	23 May 1950
Select Committee Report	:	Council Paper No. 59 of 1950
Third Reading	:	15 August 1950
Commencement	:	23 August 1950

13. 1955 Revised Edition — Vagrancy Ordinance (Chapter 125)

Operation	:	1 July 1956

14. G.N. No. S (N.S.) 179/1959 — Singapore Constitution (Modification of Laws) (No. 5) Order, 1959

Commencement	:	20 November 1959

15. Ordinance 2 of 1961 — Common Gaming Houses Ordinance, 1961
(Amendments made by section 25(2) of the above Ordinance)

Bill	:	124/1961
First Reading	:	11 January 1961
Second Reading	:	22 February 1961
Notice of Amendments	:	22 February 1961
Third Reading	:	22 February 1961
Commencement	:	3 March 1961 (section 25(2))

16. Act 30 of 1965 — Destitute Persons Act, 1965
(Amendments made by section 19 of the above Act)

Bill	:	62/1965
First Reading	:	13 December 1965
Second and Third Readings	:	31 December 1965
Commencement	:	9 May 1966 (section 19)

17. Act 14 of 1969 — Statute Law Revision Act, 1969
(Amendments made by section 2 read with the First Schedule to the above Act)

Bill	:	22/1969
First Reading	:	15 October 1969
Second Reading	:	22 December 1969
Notice of Amendments	:	22 December 1969
Third Reading	:	22 December 1969
Commencement	:	2 January 1970 (section 2 read with the First Schedule)

PART 5
MISCELLANEOUS OFFENCES (PUBLIC ORDER AND NUISANCE) ACT 1906
(2020 REVISED EDITION)

18. Ordinance XIII of 1906 — The Minor Offences Ordinance 1906

Bill	:	G.N. No. 453/1906
First Reading	:	4 May 1906
Second Reading	:	11 May 1906
Notice of Amendments	:	22 June 1906
Third Reading	:	29 June 1906
Commencement	:	29 June 1906 (assent) 6 July 1906 (publication)

Note: This Ordinance repealed An Act for regulating the sale of spirituous liquors etc. in cantonments (Indian Act XVIII of 1853), An Act for regulating the Police of the Settlements of Prince of Wales Island Singapore and Malacca (Indian Act XIII of 1856), An Act to amend Act XIII of 1856 (Indian Act XLVIII of 1860), An Act to amend the law regulating the Police of the Settlements of Prince of Wales Island Singapore and Penang (Act III of 1863) and The Summary Criminal Jurisdiction Ordinance, 1872 (Ordinance XIII of 1872).

19. Ordinance XXIV of 1907 — The Minor Offences Ordinance 1906 Amendment Ordinance 1907

Bill	:	G.N. No. 1084/1907
First Reading	:	18 October 1907

Second Reading	:	15 November 1907
Third Reading	:	29 November 1907
Commencement	:	29 November 1907

20. Ordinance XXXIII of 1907 — The Repeal Ordinance 1907
(Amendments made by section 2 read with Part I of the Schedule to the above Ordinance)

Bill	:	G.N. No. 1245/1907
First Reading	:	29 November 1907
Second Reading	:	6 December 1907
Notice of Amendments	:	13 December 1907
Third Reading	:	20 December 1907
Commencement	:	1 April 1908 (section 2 read with Part I of the Schedule)

21. Ordinance XIV of 1908 — The Minor Offences Ordinance 1906 Amendment Ordinance 1908

Bill	:	G.N. No. 878/1908
First Reading	:	21 August 1908
Second Reading	:	28 August 1908
Notice of Amendments	:	4 September 1908
Third Reading	:	11 September 1908
Commencement	:	1 January 1909

22. Ordinance V of 1909 — The Minor Offences Ordinance 1906 Amendment Ordinance 1909

Bill	:	G.N. No. 316/1909
First Reading	:	19 March 1909
Second Reading	:	2 April 1909
Notice of Amendments	:	17 May 1909
Third Reading	:	11 June 1909
Commencement	:	17 June 1909

23. Ordinance XI of 1912 — The Public Authorities Protection Ordinance 1912

(Amendments made by section 3 read with the Schedule to the above Ordinance)

Bill	:	G.N. No. 947/1912
First Reading	:	30 August 1912
Second Reading	:	20 September 1912
Notice of Amendments	:	4 October 1912
Third Reading	:	25 October 1912
Commencement	:	13 November 1912 (section 3 read with the Schedule)

24. Ordinance VII of 1914 — The Minor Offences (Amendment) Ordinance 1914

Bill	:	G.N. No. 26/1914
First Reading	:	30 January 1914
Second Reading	:	13 February 1914
Notice of Amendments	:	27 February 1914
Third Reading	:	13 March 1914
Commencement	:	25 March 1914

25. Ordinance 20 of 1918 — Minor Offences (Amendment) Ordinance, 1918

Bill	:	G.N. No. 711/1918
First Reading	:	17 June 1918
Second Reading	:	1 July 1918
Notice of Amendments	:	29 July 1918
Third Reading	:	29 July 1918
Commencement	:	2 August 1918

26. Ordinance 39 of 1919 — Minor Offences (Amendment) Ordinance, 1919

Bill	:	G.N. No. 1527/1919
First Reading	:	27 October 1919
Second Reading	:	10 November 1919
Third Reading	:	19 December 1919
Commencement	:	31 December 1919

27. 1920 Revised Edition — Ordinance No. 96 (Minor Offences)

Operation	:	28 November 1921

28. 1926 Revised Edition — Ordinance No. 96 (Minor Offences)

Operation	:	1 August 1926

29. Ordinance 24 of 1926 — The Minor Offences (Amendment) Ordinance, 1926

Bill	:	G.N. No. 1151/1926
First Reading	:	12 July 1926
Second Reading	:	6 September 1926
Third Reading	:	11 October 1926
Commencement	:	27 October 1926

30. Ordinance 2 of 1931 — Minor Offences (Amendment) Ordinance, 1931

Bill	:	G.N. No. 148/1931
First Reading	:	26 January 1931
Second and Third Readings	:	23 March 1931
Commencement	:	10 April 1931

31. Ordinance 12 of 1933 — Minor Offences (Amendment) Ordinance, 1933

Bill	:	G.N. No. 381/1933
First Reading	:	6 March 1933
Second Reading	:	1 May 1933
Notice of Amendments	:	1 May 1933
Third Reading	:	1 May 1933
Commencement	:	11 May 1933

32. Ordinance 19 of 1933 — Traffic Regulation Ordinance, 1933
(Amendments made by section 6 read with the Schedule to the above Ordinance)

Bill	:	G.N. No. 6/1933
First Reading	:	16 January 1933
Second Reading	:	6 March 1933
Select Committee Report	:	Council Paper No. 25 of 1933
Notice of Amendments	:	1 May 1933

Third Reading	:	31 July 1933
Commencement	:	27 September 1933 (section 6 read with the Schedule)

33. Ordinance 6 of 1934 — Minor Offences (Amendment) Ordinance, 1934

Bill	:	G.N. No. 1659/1933
First Reading	:	2 October 1933
Second Reading	:	4 December 1933
Select Committee Report	:	Council Paper No. II of 1934
Notice of Amendments	:	12 February 1934
Third Reading	:	12 February 1934
Commencement	:	21 March 1934

34. Ordinance 40 of 1935 — The Minor Offences (Amendment) Ordinance, 1935

Bill	:	G.N. No. 2122/1935
First Reading	:	26 August 1935
Second Reading	:	28 October 1935
Notice of Amendments	:	28 October 1935
Third Reading	:	28 October 1935
Commencement	:	9 November 1935

35. Ordinance 63 of 1935 — Statute Law Revision Ordinance, 1935
(Amendments made by section 2 read with item (*bb*) of the First Schedule to the above Ordinance)

Bill	:	G.N. No. 3043/1935
First Reading	:	20 November 1935
Second Reading	:	9 December 1935
Notice of Amendments	:	9 December 1935
Third Reading	:	9 December 1935
Commencement	:	31 December 1935 (section 2 read with item (*bb*) of the First Schedule)

36. 1936 Revised Edition — Minor Offences Ordinance (Chapter 24)

Operation	:	1 September 1936

37. Ordinance 41 of 1936 — Statute Law (Revised Edition) Amendment Ordinance, 1936

(Amendments made by section 2 read with paragraph I of the Schedule to the above Ordinance)

Bill	:	G.N. No. 3285/1936
First and Second Readings	:	7 December 1936
Notice of Amendments	:	7 December 1936
Third Reading	:	7 December 1936
Commencement	:	30 December 1936 (section 2 read with paragraph I of the Schedule)

38. Ordinance 26 of 1937 — Minor Offences (Amendment) Ordinance, 1937

Bill No.	:	G.N. No. 1597/1937
First Reading	:	14 June 1937
Second Reading	:	30 August 1937
Notice of Amendments	:	30 August 1937
Third Reading	:	30 August 1937
Commencement	:	14 September 1937

39. Ordinance 32 of 1937 — Minor Offences (Amendment No. 2) Ordinance, 1937

Bill	:	G.N. No. 2327/1937
First Reading	:	30 August 1937
Second and Third Readings	:	25 October 1937
Commencement	:	18 November 1937

40. Ordinance 27 of 1938 — Minor Offences (Amendment) Ordinance, 1938

Bill	:	G.N. No. 2800/1938
First Reading	:	31 October 1938
Second and Third Readings	:	23 November 1938
Commencement	:	6 December 1938

41. Act 37 of 1939 — Vagrancy Ordinance, 1939

(Amendments made by section 23 read with Schedule B to the above Ordinance)

Bill	:	G.N. No. 2460/1939

First Reading	:	28 August 1939
Second Reading	:	16 October 1939
Notice of Amendments	:	16 October 1939
Third Reading	:	16 October 1939
Commencement	:	15 December 1939 (section 23 read with Schedule B)

42. Ordinance 7 of 1940 — Minor Offences (Amendment) Ordinance, 1940

Bill	:	G.N. No. 3646/1939
First Reading	:	11 December 1939
Second and Third Readings	:	12 February 1940
Commencement	:	6 March 1940

43. Ordinance 26 of 1949 — Married Women and Children (Maintenance) Ordinance, 1949

(Amendments made by section 11 of the above Ordinance)

Bill	:	G.N. No. S 243/1949
First Reading	:	21 June 1949
Second and Third Readings	:	28 July 1949
Commencement	:	10 August 1949 (section 11)

44. Ordinance 31 of 1950 — Minor Offences (Amendment) Ordinance, 1950

Bill	:	G.N. No. S 115/1950
First Reading	:	25 April 1950
Second Reading	:	23 May 1950
Select Committee Report	:	Council Paper No. 58 of 1950
Third Reading	:	15 August 1950
Commencement	:	23 August 1950

45. Ordinance 20 of 1954 — Criminal Justice (Punishment — Amendment) Ordinance, 1954

(Amendments made by section 3 read with Part II of the Schedule to the above Ordinance)

Bill	:	28/1954
First Reading	:	17 August 1954
Second Reading	:	21 September 1954

Third Reading	:	12 October 1954
Commencement	:	18 December 1954 (section 3 read with Part II of the Schedule)

46. Ordinance 8 of 1955 — Revised Edition of the Laws (Miscellaneous Amendments) Ordinance, 1955

(Amendments made by section 2 read with item 3 of the Schedule to the above Ordinance)

Bill	:	45/1954
First Reading	:	14 December 1954
Second and Third Readings	:	28 January 1955
Commencement	:	4 February 1955 (section 2 read with item 3 of the Schedule)

47. Ordinance 37 of 1952 — Law Revision (Penalties Amendment) Ordinance, 1952

(Amendments made by section 2 read with item 3 of the Schedule to the above Ordinance)

Bill	:	32/1952
First Reading	:	16 September 1952
Second and Third Readings	:	14 October 1952
Commencement	:	30 April 1955 (section 2 read with item 3 of the Schedule)

48. 1955 Revised Edition — Minor Offences Ordinance (Chapter 117)

Operation	:	1 July 1956

49. Ordinance 23 of 1956 — Minor Offences (Amendment) Ordinance, 1956

Bill	:	54/1956
First Reading	:	5 September 1956
Second and Third Readings	:	3 October 1956
Commencement	:	19 October 1956

50. Ordinance 24 of 1959 — Minor Offences (Amendment) Ordinance, 1959

Bill	:	204/1959
First Reading	:	11 February 1959
Second and Third Readings	:	3 March 1959
Commencement	:	20 March 1959

51. Ordinance 69 of 1959 — Minor Offences (Amendment No. 2) Ordinance, 1959

Bill	:	33/1959
First Reading	:	22 September 1959
Second and Third Readings	:	14 October 1959
Commencement	:	23 October 1959

52. Ordinance 71 of 1959 — Transfer of Powers Ordinance, 1959
(Amendments made by section 4 read with the First Schedule to the above Ordinance)

Bill	:	30/1959
First Reading	:	22 September 1959
Second and Third Readings	:	11 November 1959
Commencement	:	20 November 1959 (section 4 read with the First Schedule)

53. Ordinance 72 of 1959 — Transfer of Powers (No. 2) Ordinance, 1959
(Amendments made by section 2 read with the First Schedule to the above Ordinance)

Bill	:	31/1959
First Reading	:	22 September 1959
Second Reading	:	11 November 1959
Notice of Amendments	:	11 November 1959
Third Reading	:	11 November 1959
Commencement	:	20 November 1959 (section 2 read with the First Schedule)

54. Ordinance 58 of 1960 — Minor Offences (Amendment) Ordinance, 1960

Bill	:	97/1960
First Reading	:	20 October 1960
Second and Third Readings	:	16 November 1960
Commencement	:	25 November 1960

55. Ordinance 10 of 1962 — Minor Offences (Amendment) Ordinance, 1962

Bill	:	167/1962
First Reading	:	15 January 1962

Second and Third Readings	:	14 March 1962
Commencement	:	23 March 1962

56. L.N. 231/1963 (G.N. Sp. No. S 4/1963) — Modification of Laws (Internal Security and Public Order) (Singapore) Order, 1963

Commencement	:	16 September 1963

57. L.N. 114/1965 (G.N. Sp. No. S 57/1965) — Modification of Laws (Minor Offences) (Borneo States and Singapore) Order, 1965

Commencement	:	25 March 1965

58. Act 33 of 1966 — Minor Offences (Amendment) Act, 1966

Bill	:	28/1966
First Reading	:	17 August 1966
Second and Third Readings	:	26 August 1966
Commencement	:	16 September 1966

59. Act 34 of 1967 — Minor Offences (Amendment) Act, 1967

Bill	:	31/1967
First Reading	:	31 October 1967
Second and Third Readings	:	14 November 1967
Commencement	:	1 December 1967

60. Act 14 of 1969 — Statute Law Revision Act, 1969
(Amendments made by section 2 read with the First Schedule to the above Act)

Bill	:	22/1969
First Reading	:	15 October 1969
Second Reading	:	22 December 1969
Notice of Amendments	:	22 December 1969
Third Reading	:	22 December 1969
Commencement	:	2 January 1970 (section 2 read with the First Schedule)

61. Act 18 of 1970 — Minor Offences (Amendment) Act, 1970

Bill	:	12/1970

First, Second and Third Readings	:	30 March 1970
Commencement	:	19 June 1970

62. 1970 Revised Edition — Minor Offences Act (Chapter 102)

Operation	:	15 April 1971

Note: This Revised Edition incorporated the Vagrancy Ordinance (Chapter 125, 1955 Revised Edition).

63. Act 24 of 1972 — Dangerous Fireworks Act, 1972
(Amendments made by section 10 of the above Act)

Bill	:	20/1972
First Reading	:	21 March 1972
Second and Third Readings	:	2 June 1972
Commencement	:	1 August 1972 (section 10)

64. Act 21 of 1973 — Statutes of the Republic of Singapore (Miscellaneous Amendments) Act, 1973
(Amendments made by section 2 read with the Schedule to the above Act)

Bill	:	16/1973
First Reading	:	7 March 1973
Second and Third Readings	:	20 March 1973
Commencement	:	6 April 1973 (section 2 read with the Schedule)

65. Act 2 of 1986 — Statute Law Revision Act 1986
(Amendments made by section 2 read with the First Schedule to the above Act)

Bill	:	12/1985
First Reading	:	31 October 1985
Second and Third Readings	:	10 January 1986
Commencement	:	31 January 1986 (section 2 read with the First Schedule)

66. 1985 Revised Edition — Minor Offences Act (Chapter 184)

Operation	:	30 March 1987

67. Act 10 of 1989 — Minor Offences (Amendment) Act 1989

Bill	:	16/1989

First Reading	:	19 January 1989
Second and Third Readings	:	16 February 1989
Commencement	:	9 June 1989

Note: The Minor Offences Act was renamed as the Miscellaneous Offences (Public Order and Nuisance) Act by this Act.

68. 1990 Revised Edition — Miscellaneous Offences (Public Order and Nuisance) Act (Chapter 184)

Operation	:	15 March 1990

69. Act 12 of 1996 — Miscellaneous Offences (Public Order and Nuisance) (Amendment) Act 1996

Bill	:	2/1996
First Reading	:	18 January 1996
Second and Third Readings	:	27 February 1996
Commencement	:	15 May 1996

70. 1997 Revised Edition — Miscellaneous Offences (Public Order and Nuisance) Act (Chapter 184)

Operation	:	30 May 1997

71. Act 3 of 2005 — CISCO (Dissolution) Act 2005
(Amendments made by section 16 read with item (5) of the Schedule to the above Act)

Bill	:	52/2004
First Reading	:	19 October 2004
Second and Third Readings	:	25 January 2005
Commencement	:	10 June 2005 (section 16 read with item (5) of the Schedule)

72. Act 38 of 2007 — Private Security Industry Act 2007
(Amendments made by section 42 of the above Act)

Bill	:	26/2007
First Reading	:	16 July 2007
Second and Third Readings	:	27 August 2007
Commencement	:	27 April 2009 (section 42)

73. Act 15 of 2009 — Public Order Act 2009
(Amendments made by section 49(1) of the above Act)

Bill	:	8/2009
First Reading	:	23 March 2009
Second and Third Readings	:	13 April 2009
Commencement	:	9 October 2009 (section 49(1))

74. Act 15 of 2010 — Criminal Procedure Code 2010
(Amendments made by section 430 read with item 62 of the Sixth Schedule to the above Act)

Bill	:	11/2010
First Reading	:	26 April 2010
Second Reading	:	18 May 2010
Third Reading	:	19 May 2010
Commencement	:	2 January 2011 (section 430 read with item 62 of the Sixth Schedule)

75. Act 2 of 2012 — Statutes (Miscellaneous Amendments) Act 2012
(Amendments made by section 28 of the above Act)

Bill	:	22/2011
First Reading	:	21 November 2011
Second Reading	:	18 January 2012
Notice of Amendments	:	18 January 2012
Third Reading	:	18 January 2012
Commencement	:	1 March 2012 (section 28)

76. Act 17 of 2014 — Protection from Harassment Act 2014
(Amendments made by section 22(2) of the above Act)

Bill	:	12/2014
First Reading	:	3 March 2014
Second and Third Readings	:	13 March 2014
Commencement	:	15 November 2014 (section 22(2))

77. Act 5 of 2015 — Liquor Control (Supply and Consumption) Act 2015
(Amendments made by section 38(7) of the above Act)

Bill	:	1/2015

First Reading	:	19 January 2015
Second and Third Readings	:	30 January 2015
Commencement	:	1 April 2015 (section 38(7))

78. Act 10 of 2015 — Police Force (Amendment) Act 2015
(Amendments made by section 46(4) of the above Act)

Bill	:	5/2015
First Reading	:	29 January 2015
Second and Third Readings	:	13 March 2015
Commencement	:	1 June 2015 (section 46(4))

79. Act 15 of 2019 — Criminal Law Reform Act 2019
(Amendments made by section 181 of the above Act)

Bill	:	6/2019
First Reading	:	11 February 2019
Second Reading	:	6 May 2019
Notice of Amendments	:	6 May 2019
Third Reading	:	6 May 2019
Commencement	:	1 January 2020 (section 181)

80. 2020 Revised Edition — Miscellaneous Offences (Public Order and Nuisance) Act 1906

Operation	:	31 December 2021

81. Act 24 of 2022 — Singapore Armed Forces and Other Matters Act 2022
(Amendments made by the above Act)

Bill	:	15/2022
First Reading	:	4 July 2022
Second and Third Readings	:	2 August 2022
Commencement	:	28 October 2022

82. Act 16 of 2024 — Law Enforcement and Other Matters Act 2024
(Amendments made by the above Act)

Bill	:	14/2024
First Reading	:	7 March 2024
Second and Third Readings	:	2 April 2024

Commencement	:	17 June 2024 1 January 2025

83. Act 43 of 2024 — Community Disputes Resolution (Amendment) Act 2024

Bill	:	30/2024
First Reading	:	9 September 2024
Second and Third Readings	:	12 November 2024
Commencement	:	24 March 2025

84. Act 3 of 2021 — Guns, Explosives and Weapons Control Act 2021

Bill	:	44/2020
First Reading	:	3 November 2020
Second and Third Readings	:	5 January 2021
Commencement	:	1 July 2025

85. Act 21 of 2025 — Criminal Law (Miscellaneous Amendments) Act 2025

Bill	:	15/2025
First Reading	:	14 October 2025
Second and Third Readings	:	4 November 2025
Commencement	:	30 December 2025 17 August 2026

Abbreviations

(updated on 29 August 2022)

G.N.	Gazette Notification
G.N. Sp.	Gazette Notification (Special Supplement)
L.A.	Legislative Assembly
L.N.	Legal Notification (Federal/Malaysian)
M.	Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)
Parl.	Parliament
S	Subsidiary Legislation
S.I.	Statutory Instrument (United Kingdom)
S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)

COMPARATIVE TABLE

MISCELLANEOUS OFFENCES (PUBLIC ORDER AND NUISANCE) ACT 1906

This Act has undergone renumbering in the 2020 Revised Edition. This Comparative Table is provided to help readers locate the corresponding provisions in the last Revised Edition.

2020 Ed.	1997 Ed.
—	**13A** [*Deleted by Act 17 of 2014*]
—	**13B** [*Deleted by Act 17 of 2014*]
—	**13C** [*Deleted by Act 17 of 2014*]
—	**13D** [*Deleted by Act 17 of 2014*]
—	**22**—(1) [*Deleted by Act 15 of 2019*]
—	(2) [*Deleted by Act 15 of 2019*]
—	(3) [*Deleted by Act 15 of 2019*]
22—(1)	(4)
(2)	(5)